

The Mental Capacity Act 2005



June 2021

Why should we use it? What difference does it make?

1. Consent and the MCA



NHS guidance: *'For consent to be valid, it must be voluntary and informed, and the person consenting must have the capacity to make the decision. The meaning of these terms are:*

- **voluntary** – the decision to either consent or not to consent to treatment must be made by the person, and must not be influenced by pressure from medical staff, friends or family
- **informed** – the person must be given all of the information about what the treatment involves, including the benefits and risks, whether there are reasonable alternative treatments, and what will happen if treatment does not go ahead
- **capacity** – the person must be capable of giving consent, which means they understand the information given to them and can use it to make an informed decision'

'If an adult has the capacity to make a voluntary and informed decision to consent to or refuse a particular treatment, their decision must be respected.'

<https://www.nhs.uk/conditions/consent-to-treatment/>

2. Covid 19 and the MCA



Guidance

The Mental Capacity Act (2005) (MCA) and deprivation of liberty safeguards (DoLS) during the coronavirus (COVID-19) pandemic

27 April 2021, Department of Health & Social Care guidance:

'During the pandemic, the principles of the MCA and the safeguards provided by DoLS still apply.'

Covid-19 vaccination: *'Where it has been established that the person lacks capacity to consent, an individual best interests decision should be taken in line with the best interest checklist in section 4 of the MCA.'*

[DHSC website link](#)

3. We want to safeguard adults (and save lives)



Analysis of Safeguarding Adult Reviews

April 2017 – March 2019

December 2020: The first national review of SARs (commissioned by the Local Government Association) analysed 231 SARs involving the deaths of 188 people. The SARs cover all types of care providers and professional groups – ambulance staff, police, nurses, psychiatrists, GPs, OTs, social workers etc. It found:

'For direct practice, attention to mental capacity was the most prevalent theme. The majority of the observations in this theme were related to poor practice...'

'Failure to assess: *There were numerous mentions of failure to assess mental capacity when to do so was warranted.'*

Unwise decisions: *'There were reports that ...perpetuated the incorrect belief that the Mental Capacity Act 2005 gives adults the 'right' to make unwise decisions.'*

www.local.gov.uk/analysis-safeguarding-adult-reviews

4. Coroners say so (save more lives)



COURTS AND
TRIBUNALS JUDICIARY

5 May 2021: Coroner's report (prevention of future deaths)

Laura Booth died aged 21 whilst a patient at the Royal Hallamshire Hospital. She had a learning disability and was in hospital for a routine eye operation. The coroner found she: *'...developed malnutrition due to inadequate management of her nutritional needs. Her death was contributed to by neglect.'*

Matters of concern raised by the coroner included:

- *'I remain gravely concerned that Senior Clinicians have limited or no understanding of the Mental Capacity Act and apply it in a way which undermines the principles and requirements of the legislation.'*
- *'There was no evidence of anyone seeking Laura's parents' views in a way which would be compliant with the Mental Capacity Act and even more worryingly, no evidence of clinical teams seeking Laura's views at all.'*
- *'There appeared to be a view that although there was no formal best interests meeting for decisions about Laura's nutrition, clinical discussions were taking place with the right clinicians and therefore the decisions would not be*

5. We want to save lives (save even more lives)



NHS England and NHS Improvement

July 2020: Action Learning Report 2019/2020 for the Learning Disabilities Mortality Review (LeDeR) programme

'A consistent theme emerging from reviews is **the need for more understanding of, and adherence to the Mental Capacity Act (MCA) 2005 across both health and social care.**' www.england.nhs.uk/publication/leder-action-from-learning-report/

6. We want to act legally (and not be taken to court)



Court of Appeal – Master of the Rolls, Lord Dyson:

'As I have said, the Mental Capacity Act does not impose impossible demands on those who do acts in connection with the care or treatment of others. **It requires no more than what is reasonable, practicable and appropriate.**'

The failure of police officers to use the Mental Capacity Act when dealing with a man with autism in a public swimming pool. The Court of Appeal agreed with the lower judge that the officers were liable for trespass to the person, assault, battery and false imprisonment. Case of: ZH v Commissioner of Police for the Metropolis [2013] EWCA Civ 69

<https://www.bailii.org/ew/cases/EWCA/Civ/2013/69.html>

7. We don't want to get in trouble with the Ombudsman



November 2019 – Westwood Surgery, General Practice (19 003 596b)

A finding of fault leading to injustice in relation to the prescribing of sedative medication to a woman with dementia in a care home. 'The Surgery will take steps to ensure national guidance, about caring for people with dementia and who lack capacity, is properly understood and embedded in its practices.'

<https://www.lgo.org.uk/decisions/health/general-practice/19-003-596b>

8. We want to meet CQC standards of care



Regulation 11: Need for consent

Providers must have regard to the following guidance: 'Where a person lacks mental capacity to make an informed decision, or give consent, staff **must** act in accordance with the requirements of the Mental Capacity Act 2005 and associated code of practice.'

Note: This regulation applies to all CQC registered care providers.

www.cqc.org.uk/regulations-11-need-consent

Inadequate

Shrewsbury & Telford Hospital NHS Trust, January 2020, Inadequate rating

Outpatients: 'Nursing staff did not always complete mental capacity act (MCA) assessments.'

Emergency services: 'The service must ensure that clinical staff in the ED understand and can apply the requirements of the Mental Capacity Act 2005.'

www.cqc.org.uk/reports/

9. We want to meet our professional standards of practice

Nursing & Midwifery Council: The Code: Professional standards of practice and behaviour for nurses and midwives

'4.2 make sure that you get **properly informed consent** and document it before carrying out any action'

'4.3 keep to all relevant **laws about mental capacity that apply** in the country in which you are practising'

General Medical Council: Good medical practice

17. 'You must be satisfied that you have **consent or other valid authority*** before you carry out any examination or investigation, provide treatment or involve patients or volunteers in teaching or research.'

Health & Care Professions Council: Standards of conduct, performance and ethics

1.4 'You must make sure that you have **consent from service users or other appropriate authority*** before you provide care, treatment or other services.'

* Other authority when a person is unable consent = the MCA (assessment of mental capacity and best interests)